# CLIENT SERVICES AGREEMENT

AI Automation & Knowledge Graph Services

This Client Services Agreement (this "Agreement") is entered into as of _____ (the "Effective Date") by and between Fakeworth AI, LLC, a Massachusetts limited liability company ("Fakeworth", "we", "us" or "our"), and the client identified below ("Client", "you" or "your"). Fakeworth and Client are each a "Party" and together the "Parties".

**Client Information**

Client legal name: _____

Primary contact: _____

Contact email: _____

Billing address: _____

## 1. Services

1.1 Fakeworth will provide the artificial intelligence automation, workflow design, data integration and knowledge-graph services described in this Agreement and in each statement of work signed by the Parties (each, an "SOW") (collectively, the "Services").

1.2 The Services may include discovery workshops, process mapping, design and configuration of automated workflows, ingestion of Client's documents and records into a knowledge graph, configuration of retrieval and question-answering features, user training, and ongoing monitoring of the deployed solution (the "Solution").

1.3 Fakeworth may engage subcontractors to perform parts of the Services, provided that Fakeworth remains responsible for their performance and for their compliance with this Agreement.

## 2. Fees and Payment

2.1 Client will pay Fakeworth a one-time implementation fee of $_____ (the "Implementation Fee"), payable on signature, and a platform fee of $_____ per month (the "Platform Fee"), beginning on the go-live date stated in the SOW.

2.2 Invoices are due within thirty (30) days after the invoice date. Late payments bear interest at one percent (1%) per month or the maximum rate permitted by law, whichever is less. Fees exclude taxes, which Client will pay, other than taxes on Fakeworth's net income.

2.3 Third-party model usage, hosting and API costs that exceed the usage allowance in the applicable SOW will be passed through at cost, as shown in the monthly usage report.

## 3. Platform Access

3.1 During the Subscription Term, Fakeworth grants Client a non-exclusive, non-transferable right to access and use the hosted platform through which the Solution is delivered (the

"Platform") solely for Client's internal business purposes, subject to the usage limits stated in the applicable SOW.

3.2 Client will not (a) resell or sublicense the Platform, (b) reverse engineer or attempt to extract the source code or model weights of any part of the Platform, (c) use the Platform to build a competing product, or (d) use the Platform in violation of applicable law or any acceptable use policy that Fakeworth provides in writing.

## 4. Client Data

4.1 Client retains all right, title and interest in the documents, records and other materials that Client or its users submit to the Platform ("Client Data"). Client grants Fakeworth a limited license to host, copy, process, transform and display Client Data solely as needed to provide the Services.

4.2 Fakeworth will not use Client Data to train or fine-tune any general-purpose machine learning model made available to other customers. Fakeworth may use aggregated, de-identified usage statistics to operate and improve the Platform.

4.3 Client is responsible for obtaining all consents and giving all notices required for Fakeworth to process Client Data, and for the accuracy, quality and legality of Client Data.

## 5. AI Outputs

5.1 The Solution uses machine learning models, including large language models provided by third parties, that generate outputs probabilistically. Outputs may be inaccurate, incomplete or inconsistent, and Client is responsible for reviewing outputs before relying on them for any decision with legal, financial, medical or similar significance.

5.2 As between the Parties, Client owns the outputs generated from Client Data, subject to Fakeworth's rights in the Platform and in its pre-existing materials.

## 6. Security

6.1 Fakeworth will maintain administrative, physical and technical safeguards designed to protect Client Data against unauthorized access, use or disclosure, including encryption in transit and at rest, role-based access controls and logging of administrative access.

6.2 Fakeworth will notify Client without undue delay, and in any event within seventy-two (72) hours, after confirming a security incident affecting Client Data, and will cooperate with Client's reasonable requests for information about the incident.

## 7. Confidentiality

7.1 Each Party will protect the other Party's non-public business, technical and financial information that is marked or reasonably understood to be confidential ("Confidential Information") with at least reasonable care, will use it only to perform under this Agreement, and will disclose it only to personnel and advisors who need to know it and are bound by obligations no less protective than these.

7.2 These obligations do not apply to information that is or becomes public through no fault of the receiving Party, that the receiving Party already knew or independently developed, or that it lawfully received from a third party without restriction.

## 8. Intellectual Property

8.1 Fakeworth retains all rights in the Platform, its software, prompts, workflow templates, ontologies, connectors, documentation and know-how, including improvements made while providing the Services ("Fakeworth Materials"). Upon payment in full, Client owns the custom deliverables identified in an SOW as belonging to Client, excluding Fakeworth Materials.

## 9. Term and Termination

9.1 The initial term of this Agreement is _____ months from the Effective Date (the "Initial Term") and then renews for successive twelve (12) month periods unless either Party gives notice of non-renewal at least sixty (60) days before the end of the then-current term.

9.2 Either Party may terminate this Agreement on written notice if the other Party materially breaches it and fails to cure the breach within thirty (30) days after receiving written notice. On termination, Client will pay all fees accrued through the termination date, and Fakeworth will make Client Data available for export for thirty (30) days, after which Fakeworth will delete it.

## 10. Warranty and Disclaimer

10.1 Fakeworth warrants that it will perform the Services in a professional manner consistent with industry standards. EXCEPT AS EXPRESSLY SET OUT IN THIS AGREEMENT, THE SERVICES, THE PLATFORM AND ALL OUTPUTS ARE PROVIDED "AS IS", AND FAKEWORTH DISCLAIMS ALL IMPLIED WARRANTIES, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE AND NON-INFRINGEMENT.

## 11. Limitation of Liability

11.1 NEITHER PARTY WILL BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, REVENUE OR DATA, EVEN IF ADVISED OF THEIR POSSIBILITY. EACH PARTY'S TOTAL LIABILITY UNDER THIS AGREEMENT WILL NOT EXCEED THE FEES PAID OR PAYABLE BY CLIENT IN THE TWELVE (12) MONTHS BEFORE THE CLAIM AROSE.

## 12. General

12.1 This Agreement is governed by the laws of the Commonwealth of Massachusetts, excluding its conflict of laws rules, and the Parties submit to the courts located in Suffolk County, Massachusetts.

12.2 This Agreement, together with each SOW, is the entire agreement of the Parties on its

subject matter. Amendments must be in writing and signed by both Parties. Neither Party may assign this Agreement without the other's consent, except in connection with a merger or sale of substantially all of its assets.

12.3 This Agreement may be signed electronically and in counterparts, each of which is an original and all of which together are one instrument.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

| **FAKEWORTH AI, LLC** | **CLIENT** |
| --- | --- |
| | Company: _____ |
| Signature: _____ | Signature: _____ |
| Printed Name: _____ | Printed Name: _____ |
| Title: _____ | Title: _____ |
| Date: _____ | Date: _____ |